

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

-----X **Index No.** _____
NICOLE SMITH and DAVID TOWNSEND, **Purchased** 12-20-13

Plaintiff

Plaintiffs designate New York
County as the place of trial

- against -

The basis of the venue is
where the tort arose

**THE CITY OF NEW YORK,
DETECTIVE JOSEPH PINDER, TAX # 935517
and POLICE OFFICER JOHN DOE**

SUMMONS

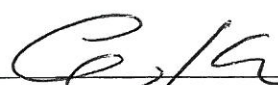
Defendants.

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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, NY
December 19, 2013



THE LAW OFFICES OF ELLIOT S. KAY
Attorney for Plaintiff
888 Grand Concourse, Suite 1H
Bronx, NY 10451
(212) 939-7251

Defendant's Address:
**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**
100 Church Street
New York, New York 10007

DETECTIVE JOSEPH PINDER, TAX REGISTRY # 935517
New York City Police Department
1 Police Plaza
New York, NY 10007

POLICE OFFICER JOHN DOE
New York City Police Department
1 Police Plaza
New York, NY 10007

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

-----X Index No. _____

NICOLE SMITH and DAVID TOWNSEND

VERIFIED COMPLAINT

Plaintiff

- against -

**THE CITY OF NEW YORK,
DETECTIVE JOSEPH PINDER, TAX # 935517
and POLICE OFFICER JOHN DOE**

Plaintiffs, NICOLE SMITH and DAVID TOWNSEND, by their attorneys,
THE LAW OFFICES OF ELLIOT S. KAY, by ELLIOT S. KAY, principal, complaining
of the defendants, respectfully shows to this Court and alleges the following upon
information and belief:

PARTIES

1. At all times hereinafter mentioned, Plaintiff NICOLE SMITH was a
resident of New York County, City and State of New York.
2. At all times hereinafter mentioned, Plaintiff DAVID TOWNSEND was a
resident of New York County, City and State of New York.
3. At all times hereinafter mentioned, defendant THE CITY OF NEW
YORK ("CITY"), was and still is a municipal corporation organized and
existing under and by virtue of the laws of the State of New York.
4. At all times hereinafter mentioned, THE NEW YORK CITY POLICE
DEPARTMENT ("POLICE"), was and is an agency of defendant CITY.

5. At all times hereinafter mentioned, defendant DETECTIVE JOSEPH PINDER, TAX REGISTRY # 935517("DET. PINDER") was and is a detective employed by Defendants.
6. At all times hereinafter mentioned, defendant POLICE OFFICER JOHN DOE ("DOE") was and is a police officer employed by Defendants.

PROCEDURAL POSTURE

7. On December 6, 2012, Plaintiff NICOLE SMITH served a Notice of Claim in writing sworn to on her behalf upon Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant of the nature, place, time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.
8. On December 6, 2012, Plaintiff DAVID TOWNSEND served a Notice of Claim in writing sworn to on his behalf upon Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant of the nature, place, time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.
9. For each Plaintiff, more than thirty days have elapsed since service of said notices, and defendant CITY has failed to pay or adjust these claims.
10. 50-H hearings have been held for each Plaintiff.
11. This action has been commenced within one year and ninety days after the cause of actions for each Plaintiff accrued.

12. The Plaintiffs have duly complied with all conditions precedent to the commencement of this action.

NICOLE SMITH

13. Paragraphs 1-12 are incorporated by reference as fully set forth herein.

14. On September 21, 2012, at approximately 6:00 a.m., inside of 55 West 110th Street in New York County, defendants, their agents, servants and employees, in particular defendants DET. PINDER and DOE, approached Plaintiff NICOLE SMITH and handcuffed Plaintiff NICOLE SMITH.

15. Defendants, including but not limited to DET. PINDER and DOE, removed Plaintiff NICOLE SMITH to a New York County Police Precinct, where Plaintiff NICOLE SMITH was searched, photographed and forced to remain in a jail cell.

16. After remaining in a jail cell for approximately five (5) hours, Plaintiff NICOLE SMITH was released from police custody with a Summons directing Plaintiff to appear in Court on November 28, 2012 to defend against the charge of Possession of Marijuana.

17. On November 28, 2012, Plaintiff appeared in Court as directed and the charge of Possession of Marijuana was dismissed and sealed.

AS AND FOR A FIRST CAUSE OF ACTION FOR PLAINTIFF

NICOLE SMITH : FALSE IMPRISONMENT

18. Paragraphs 1-17 are incorporated by reference as fully set forth herein.

19. On September 21, 2012, at approximately 6:00 a.m., inside of 55 West 110th Street in New York County, defendants, their agents, servants and employees, in particular defendants DET. PINDER and DOE, approached Plaintiff NICOLE SMITH and handcuffed Plaintiff NICOLE SMITH.

20. At the above-referenced time and place, defendants, their agents, servants and employees, in particular defendants DET. PINDER and DOE, without just cause or provocation and with reckless and negligent disregard for the truth, intentionally and falsely accused Plaintiff NICOLE SMITH of having committed the offense of Possession of Marijuana.

21. Plaintiff NICOLE SMITH was aware of Plaintiff's arrest and confinement as described in paragraphs 14-16 and she did not consent to that arrest or confinement. Defendants intended to confine Plaintiff and the confinement was not privileged or authorized by any warrant, order, or other legal right.

22. As a result of being falsely imprisoned by the Defendants, Plaintiff NICOLE SMITH sustained multiple injuries. Plaintiff NICOLE SMITH was denied liberty. Plaintiff also suffered emotional distress,

embarrassment, humiliation and fear and intimidation for Plaintiff's safety.

23. That by reason of the foregoing, Plaintiff NICOLE SMITH has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this State.

AS AND FOR A SECOND CAUSE OF ACTION FOR PLAINTIFF

NICOLE SMITH: ASSAULT

24. Paragraphs 1-23 are incorporated by reference as though fully set forth herein.
25. DET. PINDER and DOE, acting as the agents, servants and employees of the Defendants, placed NICOLE SMITH in apprehension of imminent harmful or offensive contact.
26. As a result of being assaulted by DET. PINDER and DOE, Plaintiff NICOLE SMITH sustained multiple injuries, including emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for her safety.

AS AND FOR A THIRD CAUSE OF ACTION FOR PLAINTIFF

NICOLE SMITH: BATTERY

27. Paragraphs 1-26 are incorporated by reference as though fully set forth herein.
28. When DET. PINDER and DOE grabbed NICOLE SMITH and arrested NICOLE SMITH, they subjected her to a harmful or offensive bodily

contact. The police officers intended to make that contact without the consent of NICOLE SMITH.

29. As a result of being battered by DET. PINDER and DOE, Plaintiff sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for her safety.

AS AND FOR A FOURTH CAUSE OF ACTION FOR PLAINTIFF

NICOLE SMITH: NEGLIGENCE

30. Paragraphs 1-29 are incorporated by reference as though fully set forth herein.
31. At all times hereinafter mentioned, the aforesaid false imprisonment, assault and battery was caused solely by the negligence of the Defendants, their agents, servants and/or employees.
32. As a result of the negligence of the Defendants, Plaintiff NICOLE SMITH sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for her safety.
33. That by reason of the foregoing, Plaintiff NICOLE SMITH has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this State.

AS AND FOR A FIFTH CAUSE OF ACTION FOR PLAINTIFF

NICOLE SMITH: NEGLIGENT SUPERVISION

34. Paragraphs 1-33 are incorporated by reference as though fully set forth herein.
35. Defendant CITY, through its agents, servants and employees, including defendant POLICE, had the responsibility for supervising, disciplining, evaluating and training of DET. PINDER and DOE, and the other NYPD officers involved in this matter.
36. Defendants CITY and POLICE have grossly failed to train and properly supervise its police officers, particularly the police officers involved herein, regarding the law of arrest, search and seizure.
37. Defendants CITY and POLICE were negligent by failing to implement a policy within its police department instructing police officers not to arrest individuals such as Plaintiff unless there is a court authorized warrant or sufficient cause.
38. The foregoing acts, omissions and systematic failures are customs and policies of the Defendants, which caused its police officers to falsely arrest, and illegally search and seize Plaintiff NICOLE SMITH.
39. As a result of the negligence of defendants, Plaintiff NICOLE SMITH sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for Plaintiff's safety.

40. That by reason of the foregoing, Plaintiff NICOLE SMITH has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this State.

AS AND FOR A SIXTH CAUSE OF ACTION FOR PLAINTIFF

NICOLE SMITH: NEGLIGENT HIRING

41. Paragraphs 1-40 are incorporated by reference as though fully set forth herein.

42. The Defendants had the responsibility for hiring DET. PINDER and DOE.

43. The Defendants were negligent in hiring DET. PINDER and DOE.

44. As a result of the negligence of the Defendants, Plaintiff NICOLE SMITH sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for Plaintiff's safety.

45. That by reason of the foregoing, Plaintiff NICOLE SMITH has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this State.

AS AND FOR A SEVENTH CAUSE OF ACTION FOR PLAINTIFF

NICOLE SMITH: MALICIOUS PROSECUTION

46. Paragraphs 1-45 are incorporated by reference as though fully set forth herein.

47. In arresting Plaintiff, the Defendants acted with malice.

48. As a result of being maliciously prosecuted by the Defendants, Plaintiff sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

49. All charges were dismissed and sealed on November 28, 2012.

DAVID TOWNSEND

50. Paragraphs 1-49 are incorporated by reference as fully set forth herein.

51. On September 21, 2012, at approximately 6:00 a.m., inside of 55 West 110th Street in New York County, defendants, their agents, servants and employees, in particular defendants DET. PINDER and DOE, approached Plaintiff DAVID TOWNSEND and handcuffed Plaintiff DAVID TOWNSEND.

52. Defendants, including but not limited to DET. PINDER and DOE, removed Plaintiff DAVID TOWNSEND to a New York County Police Precinct, where Plaintiff DAVID TOWNSEND was searched, photographed and forced to remain in a jail cell.

53. After remaining in a jail cell for approximately five (5) hours, Plaintiff DAVID TOWNSEND was released from police custody with a Summons directing Plaintiff to appear in Court on November 28, 2012 to defend against the charge of Possession of Marijuana.

54. On November 28, 2012, Plaintiff appeared in Court as directed and the charge of Possession of Marijuana was dismissed and sealed.

AS AND FOR AN EIGHTH CAUSE OF ACTION FOR PLAINTIFF

DAVID TOWNSEND : FALSE IMPRISONMENT

55. Paragraphs 1-54 are incorporated by reference as fully set forth herein.

56. Plaintiff DAVID TOWNSEND was aware of Plaintiff's arrest and confinement as described in paragraph 51-53 and he did not consent to that arrest or confinement. Defendants intended to confine Plaintiff and the confinement was not privileged or authorized by any warrant, order, or other legal right.

57. As a result of being falsely imprisoned by the Defendants, Plaintiff DAVID TOWNSEND sustained multiple injuries. Plaintiff DAVID TOWNSEND was denied liberty and he suffered emotional distress, humiliation and fear and intimidation for his safety.

58. That by reason of the foregoing, Plaintiff DAVID TOWNSEND has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this State.

AS AND FOR A NINTH CAUSE OF ACTION FOR PLAINTIFF

DAVID TOWNSEND: ASSAULT

59. Paragraphs 1-58 are incorporated by reference as though fully set forth herein.

60. DET. PINDER and DOE, acting as the agents, servants and employees of the Defendants, placed DAVID TOWNSEND in apprehension of imminent harmful or offensive contact.

61. As a result of being assaulted by DET. PINDER and DOE, Plaintiff DAVID TOWNSEND sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

AS AND FOR A TENTH CAUSE OF ACTION FOR PLAINTIFF

DAVID TOWNSEND: BATTERY

62. Paragraphs 1-61 are incorporated by reference as though fully set forth herein.

63. When DET. PINDER and DOE grabbed DAVID TOWNSEND and arrested DAVID TOWNSEND, they subjected him to a harmful or offensive bodily contact. The police officers intended to make that contact without the consent of DAVID TOWNSEND.

AS AND FOR AN ELEVENTH CAUSE OF ACTION FOR PLAINTIFF

DAVID TOWNSEND: NEGLIGENCE

64. Paragraphs 1-63 are incorporated by reference as though fully set forth herein.

65. At all times hereinafter mentioned, the aforesaid false imprisonment was caused solely by the negligence of the Defendants, their agents, servants and/or employees.

66. As a result of the negligence of the Defendants, Plaintiff DAVID TOWNSEND sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

67. That by reason of the foregoing, Plaintiff DAVID TOWNSEND has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this State.

AS AND FOR A TWELFTH CAUSE OF ACTION FOR PLAINTIFF

DAVID TOWNSEND: NEGLIGENT SUPERVISION

68. Paragraphs 1-67 are incorporated by reference as though fully set forth herein.

69. Defendant CITY, through its agents, servants and employees, including defendant POLICE, had the responsibility for supervising, disciplining, evaluating and training DET. PINDER and DOE, and the other NYPD officers involved in this matter.

70. Defendants CITY and POLICE have grossly failed to train and properly supervise its police officers, particularly the police officers involved herein, regarding the law of arrest, search and seizure.

71. Defendants CITY and POLICE were negligent by failing to implement a policy within its police department instructing police officers not to arrest individuals such as the Plaintiff unless there is a court authorized warrant or sufficient cause.

72. The foregoing acts, omissions and systematic failures are customs and policies of the Defendants, which caused its police officers to falsely arrest, and illegally search and seize Plaintiff DAVID TOWNSEND.

73. As a result of the negligence of defendants, Plaintiff DAVID TOWNSEND sustained multiple injuries, including loss of liberty,

emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for Plaintiff's safety.

74. That by reason of the foregoing, Plaintiff DAVID TOWNSEND has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this State.

AS AND FOR A THIRTEENTH CAUSE OF ACTION FOR PLAINTIFF

DAVID TOWNSEND: NEGLIGENT HIRING

75. Paragraphs 1-74 are incorporated by reference as though fully set forth herein.
76. The Defendants had the responsibility for hiring DET. PINDER and DOE.
77. The Defendants were negligent in hiring DET. PINDER and DOE.
78. As a result of the negligence of the Defendants, Plaintiff DAVID TOWNSEND sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for Plaintiff's safety.
79. That by reason of the foregoing, Plaintiff DAVID TOWNSEND has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this State.

AS AND FOR A FOURTEENTH CAUSE OF ACTION FOR PLAINTIFF

DAVID TOWNSEND: MALICIOUS PROSECUTION

80. Paragraphs 1-79 are incorporated by reference as though fully set forth herein.

81. In arresting Plaintiff, the Defendants acted with malice.

82. As a result of being maliciously prosecuted by the Defendants, Plaintiff sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

83. All charges were dismissed and sealed on November 28, 2012.

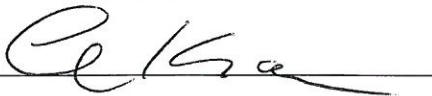
WHEREFORE, Plaintiffs each demand judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court that would otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case, and punitive damages.

Dated: Bronx, NY

December 19, 2013

Yours, etc.,

THE LAW OFFICES OF ELLIOT S. KAY

A handwritten signature in black ink, appearing to read 'E. Kay', is written over a horizontal line.

BY: ELLIOT S. KAY, ESQ.

Attorney for Plaintiff

888 Grand Concourse, Suite 1H

Bronx, NY 10451

212-939-7251

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

-----X Index No. _____

NICOLE SMITH and DAVID TOWNSEND,

VERIFICATION

Plaintiff

- against -

**THE CITY OF NEW YORK,
DETECTIVE JOSEPH PINDER, TAX # 935517,
POLICE OFFICER JOHN DOE**

I, **ELLIOT S. KAY**, an attorney admitted to practice in the courts of New York State, state that I am the attorney of record for Plaintiffs **NICOLE SMITH** and **DAVID TOWNSEND** in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not the Plaintiffs is because each Plaintiff resides outside the county where deponent maintains his office.

I affirm that the foregoing Statements are true, under the penalties of perjury.

Dated: Bronx, NY
December 19, 2013



ELLIOT S. KAY